DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

May 21, 2025

Prepared by:
Hon. Kevin D. Turnage, MSN Ed.

TO:
Executive Leadership Team,
Phoenix Indian Medical Center

SUBJECT:
Protected Disclosures Under Federal Law – 41 U.S.C. § 4712

I, Hon. Kevin D. Turnage, MSN Ed., RN, Policy and Procedure Officer at Phoenix Indian Medical Center (PIMC), formally declare that the matters I have raised regarding policy compliance risks, governance deficiencies, patient safety concerns, and reporting restrictions constitute lawful protected disclosures under federal law.

Specifically, my activities are protected by:

- **42 C.F.R. § 482.12** (Governing Body responsibilities for compliance oversight),
- **42 C.F.R. § 482.21** (Quality Assessment and Performance Improvement Program requirements),
- **OMB Circular A-123** (Management's Responsibility for Internal Control)
- **41 U.S.C. § 4712** (Whistleblower Protection Against Retaliation for Disclosure of Gross Mismanagement, Gross Waste of Funds, Abuse of Authority, or Violations of Law).

All disclosures have been made in good faith through internal administrative channels and external escalation when necessary, including submission to Indian Health Service Headquarters and formal notice to the U.S. Department of Health and Human Services, Office of Inspector General (HHS OIG).

I respectfully assert that I am engaged in federally protected activity and that no adverse personnel actions, retaliatory measures, or restrictions on my reporting obligations shall be taken in response to these lawful disclosures.

Any failure to comply with federal protection statutes may subject individuals and the institution to formal investigation and enforcement actions.

Respectfully Submitted,

Digitally signed by Kevin D. Turnage -S
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Hon. Kevin D. Turnage MSN Ed. RN, AMB-BC., NHDP-BC, NPD-BC, NE-BC
Policy and Procedure Nurse Consultant